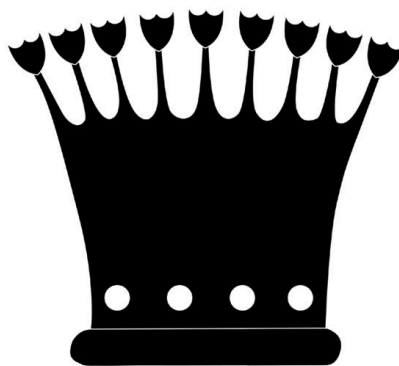


Law is much more than a system of rules governing the conduct of members of society. Its rich complexity stems from its history, how it was created and administered, its function, the way it operates, and its effects.

Around 10,000 years ago, as people began to gather in ever larger settlements, they had to find new ways to live and work together peacefully. Clear laws were needed to settle disputes. The earliest known law code—dating from around 2100 BCE and set down by order of Ur-Nammu, king of Ur, a city in Mesopotamia (now Iraq)—listed commensurate punishments for crimes. Murder, for instance, was punishable by death—an early bid, echoed in many later law codes, to ensure that justice fit the offense.

From the earliest times, rulers invoked their gods to give laws authority. The Jewish Torah enshrined laws by tradition given to Moses by God. Around 1046 BCE, King Wu of the Chinese Zhou dynasty similarly claimed a divine mandate for his rule. In the 4th century CE, Christianity's Catholic canon law developed into a legal system that has influenced modern civil law and common law, while Islamic Sharia law is based on the word of Allah in the Koran.

New civilizations established legal frameworks for laws with procedures and officials to ensure compliance. Their philosophers debated the nature of justice and shaped political ideas. In Athens, the ancient Greek city which practiced the earliest democracy, reason and a concept of justice as a virtue guided Plato's and Aristotle's theories of law. The early Roman Republic's Twelve Tables explained laws and spelled out citizens' rights. In China, between 476 BCE and 221 BCE, scholars proposed radically different systems—Daoism, Confucianism, and Legalism—ranging in nature from laissez-faire to authoritarian. Each had a lasting impact.

A large proportion of the law exists to protect members of society and their property, and the enforcement of the law acts as a deterrent, as well as ensuring justice. As trade developed, civil laws were drawn up to govern transactions and the conduct of businesses. To facilitate trade between nations, the earliest known maritime law—the *Lex Rhodia*—evolved during Greece's Classical Age (500 BCE–300 BCE).

Punishments and rights

Long after the Greek and Roman civilizations declined, barbaric forms of justice existed in medieval Europe. In the absence of evidence or credible witnesses, alleged offenders (usually the poor) could be tried by ordeal, their innocence gauged by how well they recovered from physical ordeals, such as scalding or burning. Some disputes were settled by trial by combat: a physical fight.

Trial by ordeal was banned by a 13th-century papal decree; trial by combat persisted much longer. Legal systems changed as people beyond a small ruling elite became richer and better educated. Apart from the poorest, ordinary citizens began to acquire greater rights and protections. Chapter 39 of Magna Carta, sealed in 1215, established



The end of law is not to abolish or restrain, but to preserve and enlarge freedom.

John Locke
English philosopher
(1632–1704)

